



POLICE DEPARTMENT

November 14, 2018

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In the Matter of the Charges and Specifications :

- against - :

Police Officer James Farrell :

Tax Registry No. 925261 :

Queens Court Section :

Case No.

2017-18345

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Jordan Farnham, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent:

Michael Martinez, Esq.
Worth, Longworth & London
111 John Street
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer James Farrell, on or about December 15, 2017, while assigned to the Transit Bureau District 4, having been directed by New York City Police Inspector John Benoit to comply with the directives of the [REDACTED]

(As amended)

P.G. 203-03, Page 1, Paragraph 2 COMPLIANCE WITH ORDERS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 10, 2018. Respondent, through his counsel, entered a plea of Guilty to the subject charge and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review. After considering the evidence, I agree with Respondent that some mitigation is appropriate, and recommend that Respondent forfeit thirty-two (32) days previously served on suspension.

SUMMARY OF EVIDENCE IN MITIGATION

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] (Tr. 14-19)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] (Tr. 20-23)

[illegible]

During the period of his suspension, Respondent was able to move into the apartment since [REDACTED]. [REDACTED]

[REDACTED]
[REDACTED] (Tr. 32-35, 39, 43-46)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] (Tr. 16, 22, 30, 36-38)

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on March 1, 2000. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Section 203-03 (2) of the Patrol Guide requires members of service to obey lawful orders and instructions of supervising officers. By pleading guilty, Respondent acknowledged that he received a lawful order [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[illegible][illegible]

The Advocate asks that Respondent forfeit thirty-two (32) days previously served on suspension, and that he be placed on one (1) year dismissal probation [REDACTED]

[illegible]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

On balance, I find that the Advocate has not presented a sufficient basis to justify the imposition of dismissal probation here, and that the facts of this particular case do not support such a penalty. To be sure, Respondent was wrong to refuse the order to [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Taking into account the totality of issues and circumstances in this matter, I recommend that Respondent forfeit thirty-two (32) days previously served on suspension.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

DEC 11 2018

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER JAMES FARRELL
TAX REGISTRY NO. 925261
DISCIPLINARY CASE NO. 2017-18345

Respondent was appointed to the Department on March 1, 2000.

On his last three annual performance evaluations, Respondent received overall ratings of 3.5 "Highly Competent/Competent" in 2016, 2015, and 2014.

[REDACTED]

On January 31, 2018, Respondent was placed on Level I Disciplinary Monitoring in connection with the instant case; that monitoring remains ongoing.

Respondent has no disciplinary record.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials